

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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DANTE BENNETT,

SUMMONS

Plaintiff,

Index No.:

-against-

The Basis of Venue is:
Location of Incident

THE CITY OF NEW YORK, NYPD POLICE OFFICER
JOHN PELOSO, Shield No. 18172, NYPD POLICE
OFFICER LUIS HIRALDO-GARCIA, Shield No. 2986,
NYPD SERGEANT JOSE RAMOS, Shield No. 05311,
and NYPD POLICE OFFICERS JOHN/JANE DOES
NUMBERS 1-10,

Plaintiff designates New York
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
December 16, 2021

Yours, etc.

Cary London

Cary London, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER JOHN PELOSO, SHIELD NO. 18172, NYPD Housing Bureau
PSA-5; 221 East 123rd Street, New York, NY 10035

NYPD POLICE OFFICER LUIS HIRALDO-GARCIA, SHIELD NO. 2986, NYPD 25th
Precinct; 120 East 119th Street, New York, NY 10035

NYPD POLICE SERGEANT JOSE RAMOS, SHIELD NO. 05311, NYPD 25th Precinct;
120 East 119th Street, New York, NY 10035

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

DANTE BENNETT,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
JOHN PELOSO, Shield No. 18172, NYPD POLICE
OFFICER LUIS HIRALDO-GARCIA, Shield No. 2986,
NYPD POLICE SERGEANT JOSE RAMOS, Shield
No. 05311, and NYPD POLICE OFFICERS
JOHN/JANE DOES NUMBERS 1-10,

JURY TRIAL DEMANDED

Defendants.

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Plaintiff DANTE BENNETT, by his attorneys, Shulman-Hill, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On January 19, 2021, at approximately 7:00pm, Plaintiff DANTE BENNETT, while lawfully in the vicinity of 349 East 116th Street in New York, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendants NYPD Officers John Peloso (Shield No. 18172), Luis Hiraldo-Garcia (Shield No. 2986), Sergeant Jose Ramos (Shield No. 05311), and other fellow NYPD Officers and Sergeants. In addition, Plaintiff was subjected to unnecessary force, assault, and battery, and has thus suffered emotional and psychological distress as result of the above-mentioned violations. Plaintiff was then unlawfully imprisoned at the 25th Precinct and Manhattan Central Bookings for approximately 24 hours until Plaintiff was arraigned in Criminal Court, charged with crimes he did not commit, and released on his own recognizance. Plaintiff was denied the right to due process and a fair trial until the resisting arrest charges against Plaintiff were dismissed and sealed on or about March 29, 2021. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, assaulted, battered, confined, falsely arrested, falsely imprisoned, and denied plaintiff the right to due process and a fair trial

in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff DANTE BENNETT is a resident of the State of New York.

3. NYPD POLICE OFFICER JOHN PELOSO, Shield No. 18172, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. NYPD POLICE OFFICER JOHN PELOSO, Shield No. 18172, was at all times relevant herein, assigned to the Housing Bureau at NYPD PSA-5.

5. NYPD POLICE OFFICER JOHN PELOSO, Shield No. 18172, is being sued in his individual and official capacity.

6. NYPD POLICE OFFICER LUIS HIRALDO-GARCIA, Shield No. 2986, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. NYPD POLICE OFFICER LUIS HIRALDO-GARCIA, Shield No. 2986, was at all times relevant herein, assigned to the 25th Precinct.

8. NYPD POLICE OFFICER LUIS HIRALDO-GARCIA, Shield No. 2986, is being sued in his individual and official capacity.

9. NYPD POLICE SERGEANT JOSE RAMOS, Shield No. 05311, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. NYPD POLICE SERGEANT JOSE RAMOS, Shield No. 05311, was at all times relevant herein, assigned to the 25th Precinct.

11. NYPD POLICE SERGEANT JOSE RAMOS, Shield No. 05311, is being sued in his individual and official capacity.

12. New York City Police Officers John/Jane Does are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. New York City Police Officers John/Jane Does are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and

engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

17. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on May 24, 2021.

18. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

19. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

20. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

21. On January 19, 2021, at approximately 7:00pm, Plaintiff was lawfully present in the vicinity of 349 East 116th Street in New York, New York, when the defendant police officers unlawfully stopped, questioned, assaulted, battered, frisked, and falsely arrested Plaintiff without probable cause or legal justification.

22. Plaintiff was headed to attend a friend's funeral service on the evening of January 19, 2021, at a funeral home located at 349 East 116th Street in New York, New York.

23. Upon his arrival at the funeral home, the plaintiff observed several defendant New York City Police officers gathered outside the funeral home and across the street.

24. Per current capacity regulations due to COVID-19, the plaintiff was asked by a funeral home representative to wait in the very long queue to enter the funeral parlor, which had already formed prior to his arrival.

25. Plaintiff waited outside the funeral home for approximately ten minutes, at which time he observed a commotion across the street involving a group of civilians and some of the defendant police officers.

26. The plaintiff pulled out his phone and began to record the interaction as he stood on the curb in front of the funeral home.

27. Without any warning or verbal interaction, approximately five defendant police officers approached the plaintiff and began pushing him and punching him in the head and face, injuring him and causing him to fall to the ground.

28. Defendant officers began slamming the plaintiff's body into the ground, kicking him in the abdomen and continuing to punch him in his head and face, which was now bleeding.

29. It was at this point that the plaintiff was unlawfully arrested by defendant officers, who pinned him to the ground and restrained him with excessively tight metal handcuffs.

30. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

31. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause.

32. At no point did Plaintiff resist arrest.

33. Plaintiff was then searched by Defendants Officers, and no contraband was found.

34. At no point did Defendant Officers recover any drugs, weapons, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody or control.

35. Defendants then transported Plaintiff to the 25th Precinct police station against his will, where Plaintiff was detained in a holding cell, still in handcuffs.

36. The excessively tight handcuffing caused pain and physical injury to the Plaintiff's wrists and he experienced pain and numbness in his fingers and hands as a result.

37. Plaintiff was then transported from the 25th Precinct to Manhattan

Central Bookings in handcuffs and shackles, where he was fingerprinted, photographed, given a retinal scan, and detained in a holding cell.

38. Once at Central Bookings, Plaintiff requested medical attention, at which time he was transported to a nearby Manhattan hospital for treatment.

39. Plaintiff was treated for a busted lip as well as for the pain and numbness on his hands and wrists.

40. Plaintiff was then transported back to Manhattan Central Bookings, where he was detained in a holding cell for approximately 20 hours.

41. The defendant police officers provided the New York County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed a crime.

42. Specifically, the defendant police officers falsely stated to the New York County District Attorney's Office that the plaintiff was engaged in Resisting Arrest, Criminal Possession of a Weapon, and Menacing an Officer.

43. On January 20, 2021 after approximately 24 hours in unlawful custody, Plaintiff was arraigned in New York County Criminal Court, charged with crimes that the defendant officers had no basis to allege that he committed, and was released from custody on his own recognizance.

44. Thereafter, on or about March 29, 2021, all criminal charges against Plaintiff were dismissed and sealed in their entirety.

45. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, assaulting, battering, using excessive force, falsely arresting and imprisoning, and denying Plaintiff the right to due process and a fair trial.

46. The unlawful search, seizure, assault, battery, use of excessive force, false arrest and imprisonment, and denial of Plaintiff's right to a fair trial by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

47. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.

48. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

49. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

50. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.

51. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

52. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

53. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

54. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

55. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

56. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.

57. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

58. The conduct of defendants in stopping, frisking, and searching Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

59. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

60. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

61. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Unlawful Search

62. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 61 with the same force and effect as if more fully set forth at length herein.

63. The illegal approach, pursuit, stop and search employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

64. Defendants lacked probable cause to search Plaintiff.

65. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

66. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

67. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

68. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fifth and Fourteenth Amendment Rights

Denial of Right to Fair Trial/Due Process

69. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein

70. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

71. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

72. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

73. In withholding/creating false evidence against Plaintiff DANTE BENNETT, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

74. As a result of the foregoing, Plaintiff DANTE BENNETT sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

75. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

76. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

77. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Negligence

78. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.

79. Defendants owed a duty of care to Plaintiff.

80. To the extent defendants claim that the injuries to Plaintiff by the defendant police officers was unintentionally caused and that the force used by the defendants against him was unintentional, then the defendants breached that duty of care by tightly handcuffing him, causing permanent injury and nerve damage to his right thumb and left pinky finger.

81. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

82. All of the foregoing occurred without any fault or provocation by Plaintiff.

83. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

84. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

85. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

SEVENTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights

86. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 85 with the same force and effect as if more fully set forth at length herein.

87. The use of excessive force by defendants by, amongst other things, by pushing him, punching him, and tightly handcuffing him, constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

88. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

EIGHTH CAUSE OF ACTION

Assault

89. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 88 with the same force and effect as if more fully set forth at length herein.

90. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, that such acts caused apprehension of such contact in the Plaintiff.

91. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

92. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

93. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

94. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Battery

95. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 94 with the same force and effect as if more fully set forth at length herein.

96. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner tackled Plaintiff to the ground and repeatedly punched and kicked him, with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

97. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

98. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

99. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

100. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

TENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

101. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 100 with the same force and effect as if more fully set forth at length herein.

102. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff, DANTE BENNETT. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

103. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

104. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

105. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

106. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

107. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

108. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 107 with the same force and effect as if more fully set forth at length herein.

109. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

110. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

TWELFTH CAUSE OF ACTION

Failure to Intervene

111. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 110 with the same force and effect as if more fully set forth at length herein.

112. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

113. Defendants failed to intervene to prevent the unlawful conduct described herein.

114. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to assault, battery, excessive force, and other physical constraints.

115. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

116. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

117. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

118. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

JURY DEMAND

119. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff DANTE BENNETT demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
December 16, 2021

By: Cary London
Cary London, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER JOHN PELOSO, SHIELD NO. 18172, NYPD Housing
Bureau PSA-5; 221 East 123rd Street, New York, NY 10035

NYPD POLICE OFFICER LUIS HIRALDO-GARCIA, SHIELD NO. 2986, NYPD 25th
Precinct; 120 East 119th Street, New York, NY 10035

NYPD POLICE SERGEANT JOSE RAMOS, SHIELD NO. 05311, NYPD 25th
Precinct; 120 East 119th Street, New York, NY 10035

ATTORNEY'S VERIFICATION

CARY LONDON, an attorney duly admitted to practice before the Courts of the

State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York

December 16, 2021

Cary London

CARY LONDON